

# **Policy on Official Gifts and Hospitality (POL/ADM/2024/01)**

Policy No.: POL/ADM/2024/01

Approved by: Department Management Committee, 5 June 2024

Effective Date: 1 July 2024

Owner: Administration Department, Jabatan Pembangunan Digital Sarawak

## **1. Policy Statement**

1.1 Jabatan Pembangunan Digital Sarawak is committed to integrity and transparency. Staff must not accept any gift or hospitality that may influence, or appear to influence, an official decision.

## **2. Scope**

2.1 This policy applies to all staff, including contract staff, trainees and members of the Department committees, when dealing with suppliers, contractors, applicants and members of the public.

## **3. Definitions**

3.1 Gift: any item, discount, cash, voucher, service or favour given without full payment.

3.2 Hospitality: meals, entertainment, travel, accommodation or event tickets.

## **4. Principles**

4.1 Staff must not solicit any gift or hospitality.

4.2 Cash, cash equivalents and vouchers must never be accepted, regardless of the value.

4.3 No gift or hospitality may be accepted from a supplier during an active quotation or tender exercise, or within 90 days after a contract is awarded.

## **5. Permitted Items and Limits**

5.1 A staff member may accept a token gift of a value not exceeding RM100 on a single occasion, such as a calendar, pen or festive item.

5.2 Hospitality in the form of a working meal during an official meeting is permitted if the value does not exceed RM150 per person.

5.3 Gifts received in the course of official duty with a value above RM100 belong to the Department and must be surrendered to the Administration Department.

## **6. Declaration Requirements**

6.1 Every gift or hospitality offered, whether accepted or declined, with a value of RM50 or more must be recorded in the Gift and Hospitality Register using Form ADM-06 (Gift Declaration) within seven (7) days.

6.2 Gifts valued above RM100 must be declared to the Head of Division on the same day or the next working day.

6.3 The Administration Department publishes a summary of the register to the Department Management Committee every six (6) months.

## **7. Giving Gifts**

7.1 Gifts given by the Department to guests or officials from other organisations must not exceed RM200 per recipient and must be approved by the Director of Administration.

7.2 Gifts from the Department must not be given during procurement exercises.

## **8. Cultural Occasions**

8.1 During festive occasions such as Hari Raya, Gawai Dayak and Chinese New Year, staff may accept food hampers valued up to RM100, which should be shared within the unit where possible.

## **9. Breach of Policy**

9.1 Failure to declare a gift or hospitality, or acceptance of a prohibited item, may lead to disciplinary action under the public service conduct and discipline regulations.

9.2 Any suspected case of bribery must be reported to the Director of the Department and may be referred to the Malaysian Anti-Corruption Commission (MACC).

## **10. Reporting and Whistleblowing**

10.1 Staff may report breaches by e-mail to [integriti@jpds.example.my](mailto:integriti@jpds.example.my) or through the confidential Integrity Hotline at extension 1900. Reports made in good faith are protected under the Department Whistleblower Protection Procedure.

## **11. Review**

11.1 This policy will be reviewed every two (2) years. The next review is due in July 2026.